

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

8. GINNY ANNE SILVER V. MICHAEL JAMES SILVER

24FL0997

On February 4, 2026, Respondent filed a Request for Order (RFO) seeking to set aside the Judgment and requesting custody and visitation orders, child support, and property control orders. The parties were referred to Child Custody Recommending Counseling (CCRC) and a review hearing was set for the present date. Respondent did not file an Income and Expense Declaration. The RFO was electronically served on Petitioner only on February 5th, however this is a post-judgment request and therefore it was required to be personally served in accordance with Family Code § 215. Additionally, Respondent failed to serve the CCRC referral form, the Notice of Tentative Ruling and the required blank FL-320. Also, the Department of Child Support Services (DCSS) was not served even though they are a party to the case.

Despite the fact that there is no Proof of Service for DCSS, DCSS did file a Responsive Declaration to Request for Order on February 25th thereby waiving any defect in service.

Neither party appeared at the scheduled CCRC appointment.

Respondent filed his Income and Expense Declaration on April 2, 2026 and again on April 6th. The court finds this to be late filed. “For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration.” Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

Respondent filed another RFO on April 8, 2026. This time, the request was filed ex parte. It was denied on an ex parte basis but the court set the RFO to join with the already scheduled hearing date. It was electronically served on April 7th, again in violation of Section 215. Petitioner filed a Responsive Declaration to Request for Order the same day.

Petitioner filed her Responsive Declaration to Request for Order on April 13th objecting to the RFO as it was not properly served.

The RFOs are dropped from calendar due to the multiple defects in service and failure to timely file the required Income and Expense Declaration.

TENTATIVE RULING #8: BOTH RFOS ARE DROPPED FROM CALENDAR DUE TO THE NUMEROUS DEFECTS IN SERVICE.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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9. DEBRA STANLEY V. ROBERT STANLEY

PFL20210202

On Marh 18, 2026, Respondent filed a Request for Order seeking visitation and spousal support orders. He filed his Income and Expense Declaration on March 17th. Both documents were served on Petitioner on March 17th however Respondent did not serve the requisite blank FL-320 or the Notice of Tentative Ruling. The Department of Child Support Services (DCSS) was not served.

Petitioner has not filed a Responsive Declaration to Request for Order.

Respondent requests a modification of the parenting time orders with a summer vacation schedule, holiday schedule and soccer season schedule. He further asks the court to terminate spousal support.

The parties attended Child Custody Recommending Counseling (CCRC) on March 5, 2026 and were unable to reach any agreements. A report with recommendations was prepared and mailed to the parties on April 17, 2026.

Given that both parties attended and participated in CCRC, and given that Respondent is not making a child support request, the court does find good cause to proceed with the matter on its merits despite the defect in service.

After reviewing the filings as outlined above the court does find the recommendations contained in the April 17, 2026 CCRC report to be in the best interests of the minors. They are hereby adopted as the orders of the court.

Regarding the request to terminate spousal support, the court maintains broad discretion in determining whether a support award is warranted and if so, the amount and duration thereof. *In re Marriage of McLain*, 7 Cal. App. 5th 262, 269 (2017). While the factors listed in Family Code section 4320 may be considered by the court, an award for *temporary* support is generally unrestricted by any statutory authority. See *Marriage of Tong & Samson*, 197 Cal. App. 4th 23, 29 (2011). That said, Section 4320 does include consideration of the duration of the marriage and an award of support for a “reasonable time” for the supported party to become self-supporting.

Here, the marriage was less than three years in duration and support was originally ordered in April of 2021, approximately five years ago. Given that at this point support has been ongoing almost twice as long as the marriage itself, the court does find that Petitioner has had a sufficiently reasonable amount of time to become self-supporting. Accordingly, the request to terminate spousal support is granted.